SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 7048 of 2019 (YEAR: 2018)

CORAM: A.K. SIKRI, ASHOK BHUSHAN

Fortune Infrastructure
... Appellant(s) / Petitioner(s)
Versus
Trevor D'Lima
... Respondent(s)

Acts Referred:	Consumer Protection Act, 1986
Sections:	Section 14 Consumer Protection

JUDICIAL HEADNOTE & SUMMARY

Held that a flat purchaser cannot be expected to wait indefinitely for possession; where builder fails to deliver within reasonable time, purchaser is entitled to full refund with compensation.

RATIO DECIDENDI

The Court held that: Held that a flat purchaser cannot be expected to wait indefinitely for possession; where builder fails to deliver within reasonable time, purchaser is entitled to full refund with compensation. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Fortune Infrastructure v. Trevor D'Lima (Civil Appeal No. 7048 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Consumer Protection Act, 1986, particularly Section 14 Consumer Protection. Held that a flat purchaser cannot be expected to wait indefinitely for possession; where builder fails to deliver within reasonable time, purchaser is entitled to full refund with compensation.

OPERATIVE ORDER

ORDER: Decided